

6	Bitner vs. Jaguar Land Rover North America, LLC 2024-01424696	Motion to Compel Deposition (Oral or Written) Plaintiff Jennifer L. Bitner's (plaintiff) motion to compel deposition is CONTINUED to November 6, 2026 at 9:30 AM in this department. Plaintiff and defendant Jaguar Land Rover North America, LLC (defendant) are ORDERED to (1) engage in a good faith, face-to-face meet and confer effort regarding each issue raised by this motion either in person or via videoconference, within 10 court days or by no later than Monday 6/22/26; and (2) file a jointly-prepared separate statement as to any topics of examination and requests for production that remain at issue, if any, by no later than Friday 6/26/26 at 5:00 p.m. This motion concerns plaintiff's second amended deposition notice served on 3/11/26, setting the deposition of defendant's person most qualified (PMQ) on 3/30/26, and containing a whopping 66 topics of examination (some of which have subparts) and 73 demands for production. (Roldan Decl. ¶ 17, Ex. 4 [subject deposition notice].) Once defendant responded to the subject deposition notice by serving written objections (Roldan Decl. ¶ 18, Ex. 5), plaintiff was required to meet and confer, or more specifically, to make "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., §§ 2016.040, subd. (a), 2025.450, subd. (b)(2).) Plaintiff never attempted to meet in confer "in person, by telephone, or by videoconference"; plaintiff only sent written correspondence. To make matters worse, defendant ignored plaintiff's written attempts to meet and confer until after plaintiff filed this motion (see Roldan Decl. ¶¶ 20-23), and when defendant finally responded to plaintiff's meet and confer attempts (less than three hours before filing its opposition to
---	--	---

		this motion), it did nothing more than offer to produce its PMQ on 11/5/26, more than five months after this hearing. (See Cho Decl. ¶ 9, Ex. A [email response dated 5/22/26 at 5:17 p.m.] .) Given the extent of the examination topics and requests for production at issue, a proper meet and confer conference is in order. The parties shall engage in a good faith, face-to-face meet and confer effort and file a joint separate statement as to any remaining issues, as ordered above. To help guide the parties’ court-ordered meet and confer conference, the court notes the following tentative observations: (A) This action concerns plaintiff’s 2022 Land Rover Defender (subject vehicle) purchased on or about 8/7/21 (Compl. ¶ 9) or 3/10/23 (Roldan Decl. ¶ 7). Plaintiff should clarify the purchase date during the parties’ meet and confer conference. (B) The defects at issue in this action are “fuel system” defects, and “sunroof, engine, electrical system, and structural defects.” (Compl. ¶ 13; Roldan Decl. ¶ 9.) (C) This action concerns whether defendant failed to promptly repurchase the subject vehicle after failing to conform it to warranty after a reasonable number of repair attempts, failed to commence and/or complete repairs within 30 days or a reasonable time, failed to provide its authorized repair facilities sufficient service literature and replacement parts to effect repairs, and whether defendant’s failure to comply with these obligations was willful. (See Compl. ¶¶ 14-16, 18, 21-25, 27, 29; Rolden Decl. ¶¶ 7-12.) (D) Generally, the examination topics and requests for production should be limited in scope to the relevant time period, i.e., the date plaintiff purchased the subject vehicle, to the present.
--	--	---

		(E) Questions and records regarding plaintiff's vehicle specifically (i.e., the very subject vehicle at issue in this action) are relevant. (See Code Civ. Proc., § 2017.010 [relevance for purposes of discovery].) This includes, inter alia, the entire warranty transaction history for the subject vehicle. (F) Questions and records regarding defendant's review and/or investigation of plaintiff's vehicle repairs, plaintiff's complaints regarding the subject vehicle, and/or plaintiff's request(s) for a buyback are relevant. (G) Questions and records concerning the defects at issue in vehicles of the same make, model, and year as the subject vehicle are relevant, as are questions and records pertaining to defendant's knowledge of these defects and its ability to repair them. (See <i>Lopez v. Watchtower Bible & Tract Society of New York, Inc.</i> (2016) 246 Cal.App.4th 566, 590-591 [broad scope of discovery]; see also Civ. Code, § 1794, subd. (c) [civil penalty of up to two times the amount of actual damages for willful violations of the Act]; <i>Bowser v. Ford Motor Co.</i> (2022) 78 Cal.App.5th 587, 615-617 [relevance of evidence showing defendant's knowledge of problems/defects]; <i>Donlen v. Ford Motor Co.</i> (2013) 217 Cal.App.4th 138, 143-144, 153 [relevance of evidence of similar problems in other vehicles]; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 973, 978-979, 986 [same].) (H) Questions and records concerning diagnostic procedures, repair procedures, recalls, technical service bulletins, field technical reports, and internal analyses and investigations regarding the defects at issue in vehicles of the same make, model, and year as the subject vehicle are relevant. (I) Questions and records relating to communications regarding the subject vehicle between defendant, defendant's authorized repair facilities, and/or plaintiff are relevant.
--	--	--

		(J) Policies and procedures related to the repurchase or replacement of a vehicle under the Song-Beverly Consumer Warranty Act, which were in effect during plaintiff's ownership of the subject vehicle, are relevant. (K) The parties should schedule the deposition for a mutually agreeable date within 30 days of the court-ordered meet and confer conference. If the parties are unable to agree on a date, the court will set the deposition for a date within a week of the continued hearing on this motion. Plaintiff shall give notice of all of the above.
8	Lanagan vs. Penney OPCO LLC 2025-01516569	Demurrer to Complaint Defendant Penney OpCo, LLC's Demurrer to the Complaint is CONTINUED to September 11, 2026 at 9:30 AM. Plaintiff T.K.C Lanagan appears to have served an opposition to the demurrer on Defendant, but failed to file it with the court. Accordingly, the hearing is continued, and Plaintiff is ordered to file his opposition with the court within the next 15 days. No further briefing is allowed. Moving Party shall give notice.
9	Thomas Solar Energy vs. Orange County Sanitation District 2023-01337224	Motion to Be Relieved as Counsel of Record The motion of attorney Matt Cortez of Matt Cortez Law, PC to withdraw as attorney of record for Plaintiffs Thomas Solar Energy and Thomas Nguelyn is GRANTED only as to Plaintiff Thomas Solar Energy, effective as of